

Renu Aggarwal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 October 2017 · Writ-C No. 49231 of 2017 · **Recovery citation stayed; notice issued; listed with connected writ.**

HEADNOTE

The Allahabad High Court connected this writ with Writ-C No. 8370 of 2016, in which clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 is under challenge, issued notice to the Advocate General and respondent no. 7, and directed that the recovery citation shall not be enforced against the petitioner in the meantime, while leaving the respondents free to recover the dues from respondent no. 7.

FACTUAL SUMMARY

Renu Aggarwal and another invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and six others after a recovery citation was issued against them for electricity dues. A connected writ, Writ-C No. 8370 of 2016, already questioned clause 4.3(f)(v) of the Electricity Supply Code, 2005. Respondent no. 7 stood as a person from whom the same dues were said to be recoverable. The petitioners sought protection against enforcement of the citation pending that challenge.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(v)

interlocutory stay of recovery pending challenge to clause 4.3(f)(v)

HOLDING

Because clause 4.3(f)(v) of the Electricity Supply Code, 2005 is under challenge in connected Writ-C No. 8370 of 2016, the Court listed this writ with that petition, issued notice to the Advocate General and respondent no. 7, and directed that the recovery citation shall not be enforced against the petitioner in the meantime, while leaving it open to the respondents to recover the dues from respondent no. 7. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises

The Allahabad High Court connected this writ with Writ-C No. 8370 of 2016, in which clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 is under challenge, issued notice to the Advocate General and respondent no.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF CLAUSE 4.3(F)(V) OF THE ELECTRICITY SUPPLY CODE, 2005

The clause is under challenge in the connected writ; this order only issues notice and grants interim protection. ¶ 1

NOT DECIDED — MERITS OF THE ELECTRICITY DUES AND THE RECOVERY CITATION

No finding on liability; only an interlocutory stay against the petitioner, with recovery from respondent no. 7 left open.

¶ 1